
Journal

1974 PLD 4

Court

HIGH COURT (BAGHDAD-UL-JADID)

Date

1973-05-29

Appeal No.

WRIT PETITION NO. 4 OF 1972/BWP

Judge

ZAKI-UD-DIN PAL

Parties

MST. SHAUKAT FEROZE—PETITIONER VERSUS THE DISTRICT JUDGE, BAHAWALPUR
AND ANOTHER— RESPONDENTS

Lawyers

. G. CHOWDHRY FOR PETITIONER. M. M. BHATTI FOR RESPONDENT NO. 2.

Statutes

WEST PAKISTAN FAMILY COURTS ACT (XXXV OF 1964) - S. 10(4) CIVIL PROCEDURE
CODE (V OF 1908) - O. XIV,RR. 1 AND 3 WEST PAKISTAN FAMILY COURTS ACT (XXXV OF
1964) - S. 6

Judgment

Judgment

This petition is directed against the order dated 25-6-1970, passed by the learned District Judge, Bahawalpur, in the appeal filed by respondent No. 2, whereby the order of the learned Judge, Family Court, Bahawalpur, dated 23-9-1969, allowing the petitioner and her two children Rs.

290 per mensem as maintenance allowance has been set aside.

2. The facts of the case are that petitioner Mst. Shaukat Feroz-instituted a suit for maintenance against respondent No. 2 before the-

learned Judge, Family Court at Bahawalpur. She was married to respondent No. 2 on 3-6-1962 and two children Nadeem Feroz (son) and Nishat Feroz (daughter) were born out of the wedlock on 19-3-1965 and 8-11-1966, respectively. It was alleged by the petitioner in the plaint that the mother and sister of respondent No. 2, who were putting up with him in the same house, were treating her with cruelty; when she tried to persuade her husband for a separate living in order to avoid the quarrel, he refused to do so. According to her, she was turned out of the house by the mother of her husband on 9-3-1966 and since then she has been living, along with her children, with her parents. It was also alleged that respondent No. 2 had also contracted a second marriage without her consent. According to her, she was entitled to maintenance allowance from respondent No. 2 for herself as well as for her children who were living with her. Respondent No. 2 was posted as Magistrate 1st Class at Campbellpur at the time of the institution of the suit and v/as receiving Rs. 1,000 per mensem as salary, therefore, she demanded Rs. 140 as maintenance allowance for her two children; Rs. 90 per mensem as salary of her servant including his food etc., and Rs. 200 per mensem as maintenance allowance for herself.

3. The suit was resisted by respondent No. 2 and the allegations made against him in the plaint were refuted. It was alleged that the petitioner was not living with him and was not performing her conjugal rights without any reasonable cause.

4. The learned Senior Civil Judge, Bahawalpur, exercising his powers as Judge, Family Court, held that the petitioner and her minor children were entitled to receive maintenance allowance from respondent No. 2. The maintenance allowance as prayed for the children was allowed but the petitioner was allowed Rs. 150 per mensem as maintenance allowance. This order of the Judge, Family Court was challenged before the learned District Judge, Bahawalpur, by respondent No. 2 in appeal, who accepted the same and remanded the case for fresh decision after hearing the parties, on the ground that no formal issues were framed by the learned Judge, Family Court on the basis of the pleadings of the parties as required by section 10V4 > of the West Pakistan Family Courts Act, 1964 and that the statement of the petitioner v/as recorded by the learned Judge at her house though there was no provision in the Act empowering him to do so. The learned District Judge, for the reasons mentioned above, held that the trial was without jurisdiction. The petitioner has now come up to the High Court and has challenged the validity of the order of the learned District Judge under Article 98 of the late 1962-Constitution.

5. It has been urged on behalf of respondent No. 2 that it is mandatory under subsection (4) of section 10 of the Act to frame issues in case no compromise or reconciliation between the parties is possible. The learned counsel has tried to argue that the word used in subsection (4) of section 10 of the Act for framing of issues is "shall" while word "may" has been used in rule 3 of Order XIV, C. P. C. for framing the issues. It is further contended that application of C. P. C. to the

West Pakistan Family Courts Act, 1964, has been barred by section 17 of the Act and, as such the provision of section 99, C. P. C. cannot be invoked to rectify any omission or irregularity. It is also contended that under section 6 of the Act a Family Court is to hold its sittings at such place or places within the District or area for which it is established as may be specified by the District Judge. According to the learned counsel, the place for holding sittings means the

Court premises and, as such, the learned Judge, Family Court could not hold sitting at any other place. The learned District Judge, while dealing with this aspect of the case has observed in his impugned order that since no permission was obtained by the learned Judge, Family Court for holding the trial at another place, therefore, the trial held at the house of the petitioner was illegal.

6. It is true that section 17 of the Act excludes the application of the Code of Civil Procedure to the proceedings under the Act, but the question involved in the present case can be solved without the strict application of the provisions of C. P. C. The first question, which arises for consideration, is as to what is the effect of the omission to frame the issues. It has been contended that according to subsection (4) of section 10 of the Family Courts Act the Family Court shall frame issues in the case if no compromise or reconciliation is arrived at. According to the learned counsel, this requirement of law is necessary to be followed and in the absence of that any decision will be vitiated. According to sub- rule (5) of rule 1 of Order XIV, C. P. C., the civil Court shall, at the first hearing of the suit after reading the plaint and the written statement, if any, and after such examination of the parties as may appear necessary, ascertain upon what material proposition of facts and of law the parties are at variance and shall thereupon proceed to frame and record issues on which the right decision of the case appears to depend. In subsection (4) of section 10 of the Act no consequence has been provided, like the provisions as contained in rules 1 and 3 of Order XIV, C. P. C., if no issues are framed. The word "shall" # prefixed before the words "frame the issues" makes the intention of the Legislature clear that the issues should be framed invariably on the pleadings of the parties. Since no consequence is provided for not framing the issues, therefore, the requirement in context of the provisions is directory.

The principle underlying both the provisions for framing issues i.e., in the Family Courts Act and C. P. C., is similar, therefore, the case-law so far B made under the relevant provision of the C. P. C. can be of much help while dealing with this aspect of the case.

7. The main question to be seen is as to what is the effect of not framing the issues even if it is required by law. It has been held in *Shri Satyadhyatirtswami v. Raghu Nath Daji Patil and others* (1 that if there is no issue framed on a particular question but the parties have adduced evidence and discussed it before the Court and the Court decides it as if there was an issue about it, the decree need not to be set aside in appeal merely on the ground that no such issue was framed for, the mere omission to frame an issue is not fatal to the trial of the suit.

The facts of the case cited above are that the plaintiffs claimed to be permanent tenants of the Inamdar of their village, who was a Swami and sued for an injunction restraining the Swami and others from interfering with their possession of the suit land. The relief as claimed by the plaintiffs was granted by the trial Court and the same was confirmed in appeal by the Assistant Judge. The matter came up in second appeal before the High Court and one of the contentions with regard to a particular point was that no issue had been framed regarding the same and, as such, the finding of the trial Court as well as of the lower appellate Court was vitiated on that ground. It was held that even in the absence of any issue having been framed

(1) A I R 1926 Bom. 384

if the parties had been conscious about a point and had led evidence in regard to that and the Court while deciding the point had considered the same, then the omission to frame the issue would not be fatal. Same view has been taken in *Dulhin Raj Kuar v. Muhammad Qayyum and others* (li. It was held that where evidence was given and that question was raised in both the Courts below, the decision could not be assailed in second appeal merely because there was an omission to frame a specific issue on the point. The point involved in that case was with regard to waiver about which no issue had been framed, but in spite of that, finding in that regard had been given by the Courts below. According to the facts of the case both the parties were alive to the point with regard to waiver, involved in the case, and adduced evidence. However, the trial Court found that there was no waiver. It was held by the High Court that even in the absence of any issue having been framed with regard to waiver the finding thereon was not vitiated as the parties were fully alive to the point and had led evidence. The same view has been upheld in *Sardaran and others v. The Municipality, Lyallpur* The facts of the case are that Municipal Committee, Lyallpur, by its Resolution No. 37- A dated 30-7-1956, prohibited the keeping of a brothel at the residence of any person who practised prostitution in certain specified parts of the Municipality, Lyallpur. Mst. Sardaran and 75 other prostitutes of

Lyallpur instituted a civil suit for declaration to the effect; that the resolution in question was illegal, ultra vires and void on the ground that the Municipal Committee, Lyallpur, had infringed the provisions of section 152 of the Punjab Municipal Act inasmuch as the prohibition had been extended virtually to the entire area within the Municipal limits of Lyallpur. Mst. Majidan and 35 others filed separate civil suit for declaration in which they also challenged the validity of the said resolution on the same ground. They further alleged that the resolution did not apply to them as they were not practising prostitution. Both the suits were resisted by the Municipal Committee and on the basis of the pleadings of the parties four issues were framed. After framing the issues in both the cases the proceedings were consolidated and the evidence was recorded in the suit filed by Mst. Sardaran and others. While deciding the issues already framed the trial Court further held that Mst.

Majidan and others were not actually singing and dancing girls but were also practising prostitution. The Court accordingly dismissed both the suits. The matter came up before the High Court in regular second appeal. It was contended, inter alia, by the learned counsel for the appellants that no issue had been framed by the trial Judge on the question whether the appellants i.e., Mst. Majidan and others, were only singing and dancing girls and were not practising prostitution. It was held by the learned Judge that it was true that no such issue had been framed by the trial Judge in that case, but it appeared from the record that after the evidence had been closed on behalf of the plaintiffs in both the suits on issue No. 3, the learned counsel for the plaintiff, Mst. Majidan and others, made a statement that they wished to produce two witnesses in their suit and they, thereafter, produced P. W. 8 and P. W. 9 on the same day. They stated that the plaintiffs, Mst. Majidan and others, were only singing and dancing girls and were not carrying on prostitution. It was held that it was, as such, clear that the plaintiffs did adduce evidence on that part of the case and the same was duly discussed before the trial Judge, who gave his decision thereon. It was further held, after posing the question as to whether an omission to frame an issue of fact in the circumstances narrated above vitiates the findings of the Courts below, that the answer to this question was in the negative.

The reason given by the High Court for such finding was that the plaintiffs did adduce evidence regarding this aspect of the matter and they did not claim at the trial that a separate issue should be framed on this point ; and further the matter was argued before the Courts below and the same gave their decision on the point, it was further held that in the circumstances it was, then, too late to say that on account of an omission to frame a specific issue on the point the plaintiffs were misled or prejudiced and could not adduce the necessary evidence.

8. There is no doubt that it is the duty of the Court to frame issues on the pleadings of the parties, but all the same it is also the duty of the counsel for the parties to get the proper issues framed. This view gains support from *Badarul Islam Ali Khan v. Mst. Ali Begum (I)* and *Mehar Bakhsh v. Maula Dad*

It was held in *Hiranmoy Bhaduri v. Probal Kumar Pramanik (3)* as under :—

“In spite of the defect in the frame of the issue, however, the parties in the present case seem to have gone to trial, knowing full well what the question for decision was. At least the plaintiff was given an opportunity of meeting the point raised at the trial though not covered by the issue, and he cannot be heard to say that the defect in the frame of the issue prejudiced him when he did not avail himself of that opportunity.”

In the present case, which is for the grant of maintenance allowance to the petitioner as well as to her minor children, it was alleged that the petitioner was the wife of respondent No. 2 and had been turned out illegally and arbitrarily from his house. It was alleged that she was entitled to the maintenance allowance as mentioned above. The salary and position of the respondent was also clearly mentioned in the suit. The allegations as made in the petitioner's suit were controverted by the respondent in his written statement and it was alleged that she was not residing with him without any reasonable cause and, as such, was not entitled to any maintenance allowance.

It is admitted that the parties adduced evidence in regard to all the points involved in the suit and the Family Court after discussing all the points involved in context of the evidence produced by the parties came to the conclusion that the petitioner as well as her two children were entitled to the grant of the maintenance allowance. It is not denied that the parties, while adducing evidence, never requested the Court to frame regular issues in respect of the points involved. The judgment of the Family Court shows that the parties were fully alive to the points involved and led their evidence accordingly. Respectfully following the principle of law laid down in the authorities cited above, it is held that the omission of the Family Court to frame issues is not fatal and the proceedings concluded before it are not vitiated by this defect.

Section 6 of Family Courts Act provides that subject to any general or special orders of Government in this behalf Family Court shall hold its sittings at such place or places within the district or area for which it is established as may be specified by the District Judge. It has been held by

(3) 205 I C 138

the learned District Judge that a Judge, family Court, is to hold the sittings at his Court premises and if he wants to hold the same at some other place then permission of the District Judge is necessary in this behalf. This finding has been supported by the learned counsel for the respondent.

In the present case as found by the learned District Judge, the Judge, Family Court recorded the statement of the petitioner at her residence.

Nothing has been brought on record to show as to whether any necessary order in this behalf was passed by the Family Court or not. The District Judge has, however, observed that the record of the trial Court does not show that the said statement was recorded at the residence of the petitioner but the counsel of the petitioner appearing before the District Judge has not denied this allegation. Be that as it may, the question for consideration in this context is as to what is

meant by the words, 'at such place or places within the district or area for which it is established' used in section 6 of the Family Courts Act. Family Court has been defined in section 2 of the Act as 'a Court constituted under the Act' and section 4 of the Act provides that no person shall be appointed as a Judge of the Family Court unless he is or has been a District Judge or Additional District Judge or a Civil Judge. At present the position is that practically all the Civil Judges have been empowered to act as Judges of Family Court. The Civil Judges are appointed for particular cities, towns, areas and even Tehsil headquarters. For instance there are Civil Judges appointed for Tehsil Chunian, Tehsil Ferozewala etc., and they are also working as Judges, Family Court under the Act. The provision that a Family Court shall hold its sittings at such place or places within the district or area would thus mean that Family Court will work at Tehsil Headquarters, Chunian or Tehsil Headquarters, Ferozewala within the District of Lahore and District Sheikhpura, respectively.

It would not mean that the Family Court will hold its sitting at the Court premises already specified for it within the district or area. Every place within the District where the Civil Judge, Judge Family Court is accommodated for holding its sittings would be covered by section 6 of the Act. At the time when a Civil Judge/Judge, Family Court is posted at a particular place, it is not specified that he will hold his sittings within the Court premises alone. Here the word 'place' would mean some town, area or Tehsil Headquarters as the case may be. It would not mean the Court premises specified for the Judge.

If the interpretation of the provision contained in section 6 of the Act made by the learned District Judge is accepted then it would lead to the conclusion that the Judge cannot act or work at any place except the Court premises. As discussed above, this interpretation is not correct.

9. There is no prohibition for a Civil Judge to go to the residence of a particular party for the purpose of recording his or her statement. It is, however, true that it should be done only if the circumstances of a particular case so require and the reasons for that should be given in writing.

If a Court E records the statement of a party at his residence without specifying the reasons it may be an omission but it will not amount to nullifying the whole proceedings. It would have been better if the statement of the petitioner had been recorded in the Court and if the same was necessary to be recorded at her residence for some reasons then the said reasons should have been recorded in writing before recording the statement. It is contended that by recording the statement of the petitioner at her residence by the Judge, Family Court not only the procedure has been violated but miscarriage of justice has occurred.

I do not find any force in this contention. Miscarriage of justice means such a departure from' the rules which permeate all judicial procedure as to make p that which happened not in the proper sense of the word judicial procedure at all. The violation of some principle of law or procedure must be such an erroneous proposition of law that if that proposition of law be corrected, the finding cannot stand. The circumstances of the case as discussed above show that there has been no miscarriage of justice as alleged by the respondent and even if the omission as discussed above is rectified the same will not affect the finding of the Family Court. Reliance in this respect can be placed upon Sm. Bibhabati Devi v. Ramendra Narayan Roy and others

10. It has been contended by the learned counsel for the respondent though half-heartedly that the petition suffers from laches and as such is liable to be dismissed on this ground alone. The impugned order was passed on 25th of June 1970, while the writ petition was filed on 2nd of February 1972, after a lapse of about 1 years. It is admitted that the order in question was challenged by means of Civil Miscellaneous No.

4174 of 1970 in September 1970, but the same was allowed to be converted into a petition under Article 98 of the late Constitution of 1962 by an order of this Court dated 27th of October 1971. In the circumstances the period spent in prosecuting the case by means of said Civil Miscellaneous, will be excluded while computing the period of limitation. The present petition, therefore, does not suffer from laches.

11. The above discussion would show that the impugned order dated 25th of June 1970, passed by the learned District Judge, Bahawalpur, cannot be sustained in law. The result would be that the appeal filed by the respondent would be deemed to be still pending in the Court of District Judge, Bahawalpur. The petition is accepted and the order of the District Judge is hereby set aside being illegal, without jurisdiction and of no legal effect. The case is remanded to the District Judge, Bahawalpur, for disposing of the appeal of the respondent in accordance with law. There will, however, be no order as to costs.

Petition accepted

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